

Committee Packet — Minnesota Digital Due Process Act

This neutral, reusable packet cover is provided for distribution to legislators, staff, and stakeholders.

Title: Minnesota Digital Due Process Act Prepared by: Bill of Digital Rights Project Team
Contact: info@billofdigitalrights.org

Contents: - One-page summary - Legislative brief - Draft bill text - Problem statement and supporting evidence - Implementation checklist and recordkeeping guidance

How to use: 1. This packet is neutral and transferable. Replace metadata as needed for other jurisdictions. 2. Print double-sided where possible. Use a single stapled packet or a small binder. 3. Include a short personalized cover note when handing the packet to a legislator or staffer.

Per-copy print guidance: see `../templates/PRINTING_COSTS.md` (double-sided recommended).

Please refer to the following pages for the substantive materials.

Minnesota Digital Due Process Act — One Page Summary

Problem Government agencies increasingly use automated systems and predictive models that can materially affect individuals (benefits, licenses, investigations) without transparency or meaningful human review.

Core principle (ask) No material adverse governmental action shall be taken solely on the basis of an automated prediction, algorithmic determination, or risk score. Material decisions must be subject to meaningful human review and independent supporting evidence.

Why it matters - Protects due process and equal protection principles in a data-driven era. - Preserves human accountability while allowing agencies to use AI as a tool.

Key provisions - Prohibits sole reliance on automated outputs for material adverse actions. - Requires human review with independent supporting evidence. - Requires notice when an automated system materially contributed to a decision. - Requires recordkeeping to permit oversight and audit.

Two short examples 1) Benefits denial: An automated fraud-score flags a claimant; the claimant must receive notice and human review before benefits are terminated. 2) Investigative prioritization: Predictive policing can inform leads, but no arrest or sanction shall be based solely on a prediction.

Ask (for legislators) - Sponsor or co-sponsor the Minnesota Digital Due Process Act. - Request a short briefing for committee staff.

Contact [Your name] [Phone]
[Email]

The Minnesota Digital Due Process Act

(LEGISLATIVE BRIEF — migrated from `LegislativeBrief.md`)

The Minnesota Digital Due Process Act

Preserving Constitutional Protections in Automated Government Decision-Making

Prepared for Members of the Minnesota Legislature

Executive Summary

Government agencies increasingly utilize automated systems, predictive analytics, artificial intelligence, risk-scoring tools, and algorithmic decision-support systems.

These technologies may improve efficiency, reduce costs, identify fraud, allocate resources, and assist public servants in carrying out their duties.

However, as these systems become more sophisticated, questions arise regarding transparency, accountability, due process, and constitutional protections.

The purpose of the Minnesota Digital Due Process Act is not to prohibit the use of artificial intelligence or predictive technologies.

Instead, the Act establishes a clear operational principle:

No individual should be subjected principally or solely to a material adverse governmental action because of an automated prediction, algorithmic determination, or risk score without meaningful, documented human review and independent corroborating evidence.

The proposal preserves governmental flexibility while ensuring that constitutional safeguards remain effective in a data-driven environment.

Background

Historically, governmental decisions affecting rights, benefits, property, liberty, and opportunities have been made by accountable public officials operating within established legal standards.

Increasingly, agencies utilize digital systems capable of:

- Predicting future behavior.
- Assigning risk classifications.
- Detecting anomalies.
- Identifying patterns.
- Prioritizing investigations.
- Screening eligibility.

Such systems may provide substantial public benefit.

However, they also create the possibility that individuals may experience significant consequences based upon opaque computational processes that are difficult to understand, challenge, or review.

As reliance upon automated systems increases, legal frameworks must ensure that constitutional protections remain meaningful.

Constitutional Foundations

Due Process

The Fifth and Fourteenth Amendments prohibit governmental deprivation of life, liberty, or

property without due process of law.

Due process traditionally requires:

- Notice.
- Opportunity to respond.
- Fair procedures.
- Accountability.

Automated decision systems do not eliminate these requirements.

When a governmental action materially affects an individual, meaningful procedural safeguards should remain available regardless of the technology utilized.

Equal Protection

Governmental decisions should be based upon lawful standards applied fairly and consistently.

Automated systems may unintentionally replicate historical biases, data errors, or statistical distortions.

Human review provides an important safeguard against unintended discriminatory outcomes.

Presumption of Individual Accountability

American legal traditions generally evaluate individuals based upon actions, evidence, and conduct.

Predictive technologies introduce the possibility of governmental decisions influenced by anticipated future behavior rather than established facts.

This proposal reaffirms that predictions may inform decisions but should not replace individualized evidence.

Fourth Amendment Principles

Although the proposed legislation is not a surveillance bill, the increasing availability of large-scale data collection and behavioral monitoring raises broader concerns regarding privacy and governmental power.

The Act reflects the principle that technological capability alone should not reduce constitutional protections.

Problem Statement

Current law often provides limited guidance regarding:

- Algorithmic risk scoring.
- Automated eligibility determinations.
- Predictive classification systems.
- AI-assisted governmental actions.
- Large-scale behavioral inference.

Many citizens are unaware when automated systems influence decisions affecting them.

In some circumstances, individuals may have little ability to understand or challenge algorithmically generated conclusions.

The absence of clear standards risks undermining public trust in governmental institutions.

Proposed Legislative Solution

The Minnesota Digital Due Process Act would establish the following protections:

1. Human Review Requirement

No material adverse governmental action may be based principally or solely upon an automated determination. Qualified personnel must independently review the underlying facts and evidence, have authority to disagree with or override the automated output, and must document the reasoning supporting the final decision.

Review documentation should include the reviewer's name or role, date of review, sources of independent supporting evidence, and a brief explanation of why the agency reached its conclusion. Where practicable, the documentation should be retained in the administrative record and available for oversight consistent with applicable law.

2. Independent Supporting Evidence Requirement

Automated outputs may inform decision-making. However, before a Material Adverse Governmental Action is imposed, the agency must rely on evidence independent of the automated output that is reasonably sufficient to support the determination under applicable law.

Where a decision relies principally on statistical inference, agencies should identify corroborating facts, records, or human-observed conduct that provide an independent basis for the action.

3. Notice Requirement

When an Automated Decision System materially contributed to a consequential determination, affected individuals must be provided notice describing the role the system played, the nature of the contribution, and how to request review. Notice should be provided promptly and, except in exigent circumstances, no later than 30 calendar days after the determination.

4. Right to Review

Individuals should have access to existing review, appeal, and reconsideration procedures. Where permitted by law, individuals should be provided a non-technical explanation of the reasons for the determination and the independent evidence relied upon (subject to lawful exemptions), and the opportunity to correct factual errors.

5. Agency Accountability

Agencies using Automated Decision Systems in consequential decision-making should maintain documentation sufficient to permit oversight, auditing, and review. Agencies should adopt implementation plans within 12 months of enactment describing processes for Human Review, recordkeeping, and staff training. Agencies should retain relevant records for a minimum of five years, subject to lawful exemptions.

Examples

The Act would permit:

- ✓ Fraud detection systems.
- ✓ Investigative leads generated by AI.
- ✓ Risk analysis tools.
- ✓ Resource allocation systems.
- ✓ Public safety analytics.
- ✓ Administrative decision-support tools.

The Act would not permit:

- ✗ Denial of benefits solely because an algorithm assigned a risk score.
 - ✗ Government sanctions based solely upon predictive classifications.
 - ✗ Adverse actions supported only by automated determinations.
 - ✗ Automated decisions without meaningful human review.
-

Anticipated Questions

Does this prohibit artificial intelligence?

No.

The Act permits broad governmental use of artificial intelligence and predictive systems.

It requires only that consequential decisions remain accountable to human review and supported by evidence.

Will this increase costs?

Implementation costs are expected to be limited because most agencies already maintain review procedures for significant determinations.

The Act primarily clarifies minimum procedural standards.

Does this hinder public safety?

No.

Law enforcement and public safety agencies may continue utilizing predictive technologies as investigative or analytical tools.

The proposal governs how those tools may be used when making consequential governmental decisions affecting individual rights.

Why is legislation needed now?

Artificial intelligence capabilities continue to advance rapidly.

Establishing clear procedural standards before widespread deployment may reduce future litigation, improve public trust, and provide agencies with clearer operational guidance.

Legislative Findings

The Legislature finds that:

1. Constitutional protections apply regardless of technological medium.
2. Automated systems are increasingly utilized in governmental decision-making.
3. Human accountability remains essential to democratic governance.
4. Individuals should not be subjected to adverse governmental actions solely because of automated predictions.
5. Public confidence in governmental institutions depends upon transparency, fairness, and meaningful procedural safeguards.
6. Artificial intelligence should enhance, rather than replace, constitutional due process.

Conclusion

The Minnesota Digital Due Process Act does not restrict technological innovation.

Instead, it affirms a foundational principle of American government:

Technology may assist decision-makers, but constitutional accountability must remain human.

As government increasingly relies upon artificial intelligence and predictive systems, Minnesota has the opportunity to establish clear, balanced standards that preserve both innovation and individual liberty.

Minnesota Digital Due Process Act

(Full bill text — migrated from MinnesotaDigitalDueProcessAct.md)

Section 1. Short Title

This Act shall be known and may be cited as the “Minnesota Digital Due Process Act.”

Section 2. Legislative Findings and Purpose

The Legislature finds that:

- a. Government agencies increasingly utilize automated systems, predictive analytics, artificial intelligence, machine learning systems, and algorithmic decision-support tools.
- b. Such technologies may improve efficiency, reduce administrative burdens, identify fraud, allocate resources, and assist public officials in carrying out lawful governmental functions.

- c. Constitutional protections, including due process and equal protection, remain applicable regardless of technological medium.
- d. Public confidence in governmental institutions depends upon transparency, accountability, fairness, and meaningful human oversight.
- e. Individuals should not be subjected to material adverse governmental action principally or solely on the basis of automated predictions, algorithmic determinations, or risk scores absent independent supporting evidence and meaningful human review.
- f. **The purpose of this Act is to preserve constitutional safeguards while permitting continued governmental innovation and lawful use of technology.**

Section 3. Definitions

For purposes of this Act:

Subdivision 1. Automated Decision System

“Automated Decision System” means a computational process, including artificial intelligence, machine learning, statistical modeling, algorithmic analysis, or similar technology, that is used to make or that materially contributes to a governmental decision affecting an identifiable individual.

The term does not include:

- a. basic calculations;
- b. database searches;
- c. spell-checking, formatting, or clerical software;
- d. cybersecurity systems whose outputs are not used to make determinations regarding specific individuals;
- e. **aggregated or de-identified statistical reporting that does not produce individual-level determinations.**

Subdivision 2. Material Adverse Governmental Action

“Material Adverse Governmental Action” means a governmental determination that substantially and directly affects an individual’s rights, privileges, benefits, opportunities, legal status, property interests, or liberty interests.

Examples include but are not limited to:

- a. denial, suspension, or termination of public benefits;
- b. licensing determinations;
- c. regulatory enforcement actions;
- d. civil penalties;
- e. government employment determinations;
- f. eligibility determinations;
- g. placement on governmental monitoring, risk, or investigative lists that carry legal consequences.

Subdivision 3. Human Review

“Human Review” means meaningful consideration by an authorized public official who:

- a. reviews the relevant facts and independent evidence;
- b. possesses authority to disagree with, modify, or reject the automated output;
- c. exercises independent judgment and documents the rationale for the final determination; and
- d. **is not required to automatically adopt the system’s recommendation.**

Subdivision 4. Independent Supporting Evidence

“Independent Supporting Evidence” means evidence separate from the automated determination itself and reasonably sufficient to support the governmental action under applicable law. Where statistical inference is relied upon, agencies should identify corroborating facts, records, or observations that provide an independent basis for the action.

Subdivision 5. Government Agency

“Government Agency” means any department, agency, board, commission, political subdivision, public authority, or instrumentality of the State of Minnesota.

Section 4. Prohibition on Principal or Sole Reliance

A government agency shall not impose a Material Adverse Governmental Action principally or solely on the basis of:

- a. an automated decision;
- b. a predictive risk score;
- c. an algorithmic classification;
- d. an artificial intelligence output;
- e. an automated recommendation;

unless independent supporting evidence reasonably sufficient under applicable law also supports the action.

Section 5. Human Accountability Requirement

Prior to any Material Adverse Governmental Action materially influenced by an Automated Decision System:

- a. Human Review shall occur;
- b. the reviewing official shall exercise independent judgment and shall document in the administrative record the reasons for the final decision, the independent supporting evidence relied upon, and the reviewer’s identity or role;
- c. the reviewing official shall retain final decision-making authority.

No governmental agency may delegate final legal responsibility for a Material Adverse Governmental Action to an Automated Decision System.

Section 6. Notice Requirement

Where an Automated Decision System materially contributed to a Material Adverse Governmental Action, the affected individual shall receive notice that:

- a. an Automated Decision System was utilized;
- b. the system materially contributed to the determination;
- c. the determination was subject to Human Review; and
- d. information on how to request review or appeal the decision and where to find any administrative procedures applicable to such review.

Notice shall be provided promptly and, except in exigent circumstances, no later than 30 calendar days after the determination.

Section 7. Opportunity for Review

An individual subject to a Material Adverse Governmental Action materially influenced by an Automated Decision System shall have access to any review, appeal, hearing, or reconsideration procedures otherwise available under applicable law.

Nothing in this Act shall be construed to create new causes of action beyond those expressly provided herein.

Section 8. Recordkeeping and Accountability

Government agencies utilizing Automated Decision Systems in consequential decision-making shall maintain records sufficient to:

- a. identify the system used;
- b. identify the purpose for which the system was used;
- c. document Human Review procedures and reviewer attestations;
- d. permit lawful auditing and oversight.

Agencies shall not be required to disclose information protected by law, including trade secrets, law enforcement-sensitive information, classified information, or information otherwise exempt from public disclosure. Agencies should, however, publish a public summary describing the types of systems used, the purposes served, and the agency's Human Review processes, with appropriate redactions.

Relevant records shall be retained for a minimum of five years, subject to lawful exemptions. Agencies shall adopt implementation plans within 12 months of enactment describing training, recordkeeping, and review procedures.

Section 9. Law Enforcement Safeguards

Nothing in this Act shall prohibit law enforcement agencies from:

- a. utilizing predictive tools for investigative leads;

- b. employing analytical systems for intelligence purposes;
- c. using technology to allocate resources or prioritize investigations.

However, no person shall be arrested, charged, sanctioned, designated as a suspect, or subjected to legal consequences solely on the basis of an automated prediction absent independent lawful grounds.

Section 10. Construction

This Act shall be construed narrowly to preserve constitutional protections while minimizing unnecessary burdens upon governmental operations.

Nothing in this Act shall:

- a. prohibit lawful governmental use of artificial intelligence;
 - b. require disclosure of protected investigative methods;
 - c. create a property interest in data;
 - d. prohibit statistical analysis;
 - e. prohibit fraud detection systems;
 - f. prohibit cybersecurity systems;
 - g. alter existing evidentiary standards.
-

Section 11. Enforcement

A person aggrieved by a knowing and material violation of this Act may seek:

- a. declaratory relief;
- b. injunctive relief;
- c. review through existing administrative procedures where applicable.

Courts shall give substantial weight to good-faith compliance efforts undertaken by governmental agencies. In an action for a knowing and material violation, courts may award reasonable costs, including attorney's fees, to a prevailing plaintiff.

Technical or harmless errors that do not materially affect an individual's rights shall not constitute a violation of this Act.

Section 12. Severability

If any provision of this Act or its application is held invalid, the invalidity shall not affect other provisions or applications that can be given effect without the invalid provision or application.

To this end, the provisions of this Act are severable.

Section 13. Effective Date

This Act shall take effect on July 1 following enactment.

Government agencies shall be provided a twelve-month implementation period to establish

compliance procedures.

Existing systems may remain operational during the implementation period.

Legislative Problem Statement

Preserving Due Process and Individual Liberty in the Age of Predictive Systems

Executive Summary

Advances in artificial intelligence, predictive analytics, mass data collection, and automated decision systems have created new methods by which governments and institutions may evaluate, classify, monitor, and make decisions about individuals.

Many existing legal protections were developed in an era when information collection was limited by practical constraints. Today, digital systems can aggregate years of behavioral, financial, geographic, biometric, and social information to create detailed profiles and predictions about individuals.

While these technologies may provide significant benefits in public administration, fraud prevention, public safety, and resource allocation, they also create the possibility that individuals may be subjected to adverse actions based not on what they have done, but on what an algorithm predicts they may do.

Current legal frameworks do not clearly address the growing use of predictive systems in consequential governmental decisions.

This proposal articulates a Digital Due Process principle: no individual should be subject to a material adverse governmental action principally or solely on the basis of an automated prediction, risk score, or algorithmic determination without meaningful human review and independent corroborating evidence.

The Problem

Government agencies increasingly rely on data-driven systems to assist in decision-making.

Examples include:

- Fraud detection systems.
- Risk assessment tools.
- Automated eligibility screening.
- Predictive policing technologies.
- Behavioral monitoring systems.
- AI-assisted investigative tools.

These systems often rely on large volumes of data and statistical models that identify patterns, assign risk scores, or predict future outcomes.

Although such systems may improve efficiency, they create three significant concerns:

1. Lack of Transparency

Individuals frequently do not know:

- Whether an automated system was used.
- What information was considered.
- How conclusions were reached.
- Whether the information was accurate.

Without transparency, meaningful review becomes difficult.

2. Lack of Due Process

An individual may experience adverse consequences without understanding the basis for a decision or having a meaningful opportunity to challenge it.

Traditional constitutional safeguards were designed to prevent arbitrary governmental action.

Automated systems should not diminish those safeguards; where automated outputs materially influence consequential decisions, agencies should ensure meaningful, documented human review and provide affected individuals with timely notice and an opportunity to seek reconsideration.

3. Predictive Determinations

The most significant concern arises when predictive systems are used to infer future conduct, risk, intent, or behavior.

In a free society, government action has historically been based upon evidence, conduct, and established legal standards.

Increasing reliance on predictive systems raises important questions regarding fairness, accountability, and constitutional protections.

Why Existing Law May Be Insufficient

Current laws governing privacy, records management, and administrative procedures were largely developed before the emergence of modern artificial intelligence and large-scale predictive analytics.

While existing protections remain important, they often do not specifically address:

- Algorithmic decision-making.
- Predictive profiling.
- Automated risk scoring.
- Large-scale behavioral inference.
- AI-assisted governmental determinations.

Clarification may be necessary to ensure that constitutional protections remain effective as technologies evolve.

Proposed Legislative Principle

The State of Minnesota should affirm that:

“No governmental agency shall impose a material adverse action upon an individual principally or solely on the basis of an automated prediction, risk score, or algorithmic determination without meaningful, documented human review and independent corroborating evidence.”

This principle does not prohibit the use of artificial intelligence or predictive technologies. Rather, it ensures that such technologies remain advisory tools and that constitutional safeguards retain practical effect in consequential government decisions.

Public Interest

The purpose of this proposal is not to restrict innovation.

Its purpose is to preserve long-standing constitutional principles, including:

- Due process.
- Individual accountability.

- Government transparency.
- Equal treatment under law.
- Protection against arbitrary governmental action.

Technological advancement should strengthen democratic institutions rather than diminish the rights of the individuals those institutions serve.

Requested Action

The Minnesota Legislature should examine whether existing statutes adequately protect citizens from adverse governmental actions based solely upon automated predictions and should consider establishing Digital Due Process protections to address emerging technologies.

Such protections would help ensure that constitutional rights remain meaningful in an increasingly data-driven society.

Implementation Checklist — {SHORT TITLE}

- ☐ Agency implementation plan due within 12 months of enactment
- ☐ Designated Responsible Official or Office
- ☐ Documented Human Review procedures and reviewer attestations
- ☐ Staff training completed and logged
- ☐ Record retention policy in place (minimum 5 years)
- ☐ Public summary published (with redactions as needed)
- ☐ Audit schedule established
- ☐ Process for individuals to request review and correct errors
- ☐ Fiscal impact and staffing assessment completed